

EIGHTH EDITION

Keen's Latin American Civilization

History & Society, 1492 to the Present

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A Member of the Perseus Books Group

3. PRELUDE TO DICTATORSHIP

The 1970 election of an avowed Marxist, Salvador Allende, as president of Chile came as shock to many conservative Chileans and to the virulently anti-Communist government of the United States. Allende's administration quickly embarked on efforts to restructure the Chilean economy by nationalizing the copper mines (mostly owned by U.S. companies) and banks, enacting extensive land reforms, and investing heavily in social services like housing, public health, and education. These major structural changes were attempted without a congressional majority or support from the judiciary, and with considerable resistance from within the armed forces and the police. The Nixon administration opposed Allende's program as well. National Security Adviser Henry Kissinger boldly announced that "I don't see why we have to let a country go Marxist just because its people are irresponsible." With the covert support of the U.S. Central Intelligence Agency, Allende's opponents launched a series of attacks on the fragile Chilean economy that produced soaring inflation rates and growing middle-class opposition. An aborted coup in June 1973, although suppressed by loyal army officers, led to calls for the arming of workers, which further heightened tensions. The following Congressional declaration of August 22, 1973, entitled "Grave Breakdown of the Republic's Legal and Constitutional Order," clearly reflects these growing political tensions. Just three weeks later, on September 11, 1973, an armed forces junta led by General Augusto Pinochet overthrew the Allende government and proceeded to jail, torture, and execute thousands of its political enemies. The Pinochet dictatorship promptly banned all political opposition and ruthlessly defended its hold on national politics until 1989.

Considering:

First: That in order for Rule of Law to exist, public authorities must carry out their activities and discharge their duties within the framework of the Constitution and the laws of the land, with full respect for the principle of reciprocal independence to which they are bound, and that all inhabitants of the country must be allowed to enjoy the guarantees and fundamental rights assured them by the Constitution;

Second: That the legitimacy of the Chilean State lies with the people who, over the years, have invested in this legitimacy the fundamental consensus of their coexistence. To assault legitimacy thus destroys not only the cultural and political heritage of our Nation, but also denies, in practice, all possibility of democratic life;

Third: That the values and principles expressed in article 2 of the Constitution express that the essence of sovereignty resides in the Nation, and that authorities may not exercise more powers than those delegated to them by

Declaration of the Chamber of Deputies, "Grave Breakdown of the Republic's Legal and Constitutional Order," August 22, 1973.

the Nation. Article 3 further states that any government that arrogates to itself rights not delegated to it by the people commits sedition;

Fourth: That the current President of the Republic was elected by the full Congress, in accordance with a statute of democratic guarantees incorporated in the Constitution for the very purpose of assuring that the actions of his administration would be subject to the principles and norms of the Rule of Law that he solemnly agreed to respect;

Fifth: That it is a fact that the current government of the Republic, from the beginning, has sought to achieve absolute power with the stated purpose of subjecting all citizens to the strictest political and economic control by the state and, in this manner, fulfill [its] goal of establishing a totalitarian system: the absolute opposite of the representative democracy established by the Constitution;

Sixth: That to achieve this end, the administration has committed, not isolated violations of the Constitution and of the law, but rather has made such violations a permanent practice, to such an extreme that it systematically ignores and usurps the proper role of the other branches of government, habitually violates the Constitutional guarantees of all citizens of the Republic, and allows and supports the creation of illegitimate parallel powers that constitute an extremely grave danger to the Nation. By these means it has destroyed essential elements of institutional legitimacy and Rule of Law;

Seventh: That the administration has committed the following assaults on the proper role of the National Congress, seat of legislative power:

- A. It has usurped Congress's principle legislative function by adopting various measures of great importance to the country's social and economic life that are indisputably matters of legislation. It has done so through special decrees enacted in abuse of [executive] power or through simple administrative resolutions using "legal loopholes." It is noteworthy that all of this has been done with the deliberate and confessed purpose of substituting the country's institutional structures, as conceived by current legislation, with absolute executive authority and the total elimination of legislative authority;
- B. It has consistently mocked the National Congress's oversight role by effectively removing its power to formally accuse Ministers of State who violate the Constitution or laws of the land, or who commit other offenses specified by the Constitution, and;
- C. Lastly—in what is the most extraordinarily grave [violation]—it has utterly swept aside the exalted role of Congress as a duly constituted power by refusing to enact the Constitutional reform of three areas of the economy that were approved in strict compliance with the norms established by the Constitution.

Eighth: That it has committed the following assaults on the judicial branch:

- A. With the goal of undermining the authority of the courts and compromising their independence, it has led an infamous campaign of libel and slander against the Supreme Court, and it has sanctioned very serious attacks against judges and their authority;
- B. It has made a mockery of justice in cases of delinquents belonging to political parties or groups affiliated with or close to the administration, either through the abusive use of pardons or deliberate noncompliance with detention orders;
- C. It has violated express laws and utterly disregarded the principle of separation of powers by not carrying out sentences and judicial resolutions that contravene its objectives and, when so accused by the Supreme Court, the President of the Republic has gone to the unheard of extreme of arrogating to himself the right to judge the merit of judicial sentences and to determine when they are to be complied with;

Ninth: That, as concerns the Comptroller General's Office—an independent institution essential to administrative legitimacy—the administration has systematically violated decrees and activities that point out the illegality of the actions of the Executive Branch or of entities dependent on it;

Tenth: That among the administration's constant assaults on the guarantees and fundamental rights established in the Constitution, the following stand out:

- A. It has violated the principle of equality before the law through sectarian and hateful discrimination in the protection authorities are required to give to the life, rights, and property of all inhabitants, through activities related to food and subsistence, as well as numerous other instances. It is to note that the President of the Republic himself has made these discriminations part of the normal course of his government by proclaiming from the beginning that he does not consider himself the president of all Chileans;
- B. It has grievously attacked freedom of speech, applying all manner of economic pressure against those media organizations that are not unconditional supporters of the government, illegally closing newspapers and radio networks; imposing illegal shackles on the latter; unconstitutionally jailing opposition journalists; resorting to cunning maneuvers to acquire a monopoly on newsprint; and openly violating the legal mandates to which the National Television Network is subject by handing over the post of executive

director to a public official not named by the Senate, as is required by law, and by turning the network into an instrument for partisan propaganda and the defamation of political adversaries;

- C. It has violated the principle of university autonomy and the constitutionally recognized right of universities to establish and maintain television networks, by encouraging the takeover of the University of Chile's Channel 9, by assailing that university's new Channel 6 through violence and illegal detentions, and by obstructing the expansion to the provinces of the channel owned by Catholic University of Chile;
- D. It has obstructed, impeded, and sometimes violently suppressed citizens who do not favor the regime in the exercise of their right to freedom of association. Meanwhile, it has constantly allowed groups—often armed—to gather and take over streets and highways, in disregard of pertinent regulation, in order to intimidate the populace;
- E. It has attacked educational freedom by illegally and surreptitiously implementing the so-called Decree of the Democratization of Learning, an educational plan whose goal is Marxist indoctrination;
- F. It has systematically violated the constitutional guarantee of property rights by allowing and supporting more than 1,500 illegal "takings" of farms, and by encouraging the "taking" of hundreds of industrial and commercial establishments in order to later seize them or illegally place them in receivership and thereby, through looting, establish state control over the economy; this has been one of the determining causes of the unprecedented decline in production, the scarcity of goods, the black market and suffocating rise in the cost of living, the bankruptcy of the national treasury, and generally of the economic crisis that is sweeping the country and threatening basic household welfare, and very seriously compromising national security;
- G. It has made frequent politically motivated and illegal arrests, in addition to those already mentioned of journalists, and it has tolerated the whipping and torture of the victims;
- H. It has ignored the rights of workers and their unions, subjecting them, as in the cases of El Teniente [one of Chile's most important copper mines] and the transportation union, to illegal means of repression;
- I. It has broken its commitment to make amends to workers who have been unjustly persecuted, such as those from Sumar, Huelvia, Banco Central, El Teniente, and Chuquicamata; it has followed an arbitrary policy in the turning over of state-owned farms

to peasants, expressly contravening the Agrarian Reform Law; it has denied workers meaningful participation, as guaranteed them by the Constitution; it has given rise to the end to union freedom by setting up parallel political organizations of workers.

J. It has gravely breached the constitutional guarantee to freely leave the country, establishing requirements to do so not covered by any law.

Eleventh: That it powerfully contributes to the breakdown of the Rule of Law by providing government protection and encouragement for the creation and maintenance of a number of organizations which are subversive in their exercise of the authority granted to them neither by the Constitution nor the laws of the land, in open violation of article 10, number 16 of the Constitution. These include community commandos, peasant councils, vigilance committees, the JAP, etc.; all designed to create a so-called "popular authority" with the goal of replacing legitimately elected authority and establishing the foundation of a totalitarian dictatorship. These facts have been publicly acknowledged by the President of the Republic in his last State of the Nation address and by all government media and strategists;

Twelfth: That especially serious is the breakdown of the Rule of Law by means of the creation and development of government-protected armed groups which, in addition to threatening citizens' security and rights as well as domestic peace, are headed towards a confrontation with the Armed Forces. Just as serious is that the police are prevented from carrying out their most important responsibilities when dealing with criminal riots perpetrated by violent groups devoted to the government. Given the extreme gravity, one cannot be silent before the public and notorious attempts to use the Armed Forces and Police for partisan ends, to destroy their institutional hierarchy, and to politically infiltrate their ranks;

Thirteenth: That the creation of a new ministry, with the participation of high-level officials of the Armed and Police Forces, was characterized by the President of the Republic to be "for national security" and its mandate "the establishment of political order" and "the establishment of economic order," and that such a mandate can only be conceived within the context of full restoration and validation of the legal and constitutional norms that make up the institutional framework of the Republic;

Fourteenth: That the Armed and Police Forces are and must be, by their very nature, a guarantee for all Chileans and not just for one sector of the Nation or for a political coalition. Consequently, the government cannot use their backing to cover up a specific minority partisan policy. Rather their presence must be directed toward the full restoration of constitutional rule and of the rule of the laws of democratic coexistence, which are indispensable to guaranteeing Chile's institutional stability, civil peace, security, and development;

Fifteenth: Lastly, exercising the role attributed to it by Article 39 of the Constitution,

The Honorable Chamber of Deputies, in exercise of the powers conferred on it by article 39 of the State Political Constitution, agrees:

First: To present the President of the Republic, Ministers of State, and members of the Armed and Police Forces with the grave breakdown of the legal and constitutional order of the Republic, the facts and circumstances of which are detailed in sections 5 to 12 above;

Second: To likewise point out that by virtue of their responsibilities, their pledge of allegiance to the Constitution and to the laws they have served, and in the case of the ministers, by virtue of the nature of the institutions of which they are high-ranking officials and oath they swore upon taking office, it is their duty to put an immediate end to all situations herein referred to that infringe on the Constitution and the laws of the land with the goal of redirecting government activity toward the path of Law and ensuring the constitutional order of our Nation and the essential underpinnings of democratic coexistence among Chileans;

Third: To declare that if so done, the presence of those ministers in the government would render a valuable service to the Republic. To do the contrary, they would gravely compromise the national and professional character of the Armed and Police Forces, openly infringing article 22 of the Constitution and seriously damaging the prestige of their institutions; and

Fourth: To communicate this agreement to His Excellency the President of the Republic, and to the Ministers of Economy, National Defense, Public Works and Transportation, and Land and Colonization.

X. THE DEATH OF VICTOR JARA

The overthrow of the democratic Allende government by a military coup in September 1973 ushered in a reign of terror without precedent in Chilean history. Many thousands of Allende's followers were tortured and executed. As if aping the Nazis, the fascist junta showed a special hatred for the creators of culture and their works. The junta's soldiers attempted to purify Chilean culture by holding book-burning sprees. They devastated the home of Pablo Neruda, Chile's greatest poet and Nobel Prize winner, as he lay dying of cancer. And they tortured and killed Victor Jara, a beloved composer, folk singer, and theater director, as described in the following account.

Centro de Estudios y Publicaciones, *Chile, una esperanza aplastada* (Estella, Spain: Editorial Verbo Divino, 1975), pp. 24-25.

Society is moved to compassion upon hearing of the kidnapping or murder of one child, but they are criminally indifferent to the mass murder of so many thousands of children who die every year from lack of facilities, agonizing with pain. Their innocent eyes—death already shining in them—seem to look into infinity as if entreating forgiveness for human selfishness, as if asking God to stay his wrath. When the head of a family works only four months a year, with what can he purchase clothing and medicine for his children? They will grow up with rickets, with not a single good tooth in their mouths by the time they reach thirty; they will have heard ten million speeches and will finally die of misery and deception. Public hospitals, which are always full, accept only patients recommended by some powerful politician, who, in turn, demands the electoral votes of the unfortunate one and his family so that Cuba may continue forever the same or worse.

With this background, is it not understandable that from May to December over a million persons lost their jobs, and that Cuba, with a population of five and a half million, has a greater percentage of unemployed than France or Italy with a population of forty million each?

When you judge a defendant for robbery, Your Honors, do you ask him how long he has been unemployed? Do you ask him how many children he has, which days of the week he ate and which he didn't, do you concern yourselves with his environment at all? You send him to jail without further thought. But those who burn warehouses and stores to collect insurance do not go to jail, even though a few human beings should have happened to (be cremated with the property insured). The insured have money to hire lawyers and bribe judges. You jail the poor wretch who steals because he is hungry; but none of the hundreds who steal from the Government have ever spent a night in jail; you dine with them at the end of the year in some elegant place and they enjoy your respect.

In Cuba when a bureaucrat becomes a millionaire overnight and enters the fraternity of the rich, he could very well be greeted with the words of that opulent Balzac character, Taillefer, who, in his toast to the young heir to an enormous fortune, said: "Gentlemen, let us drink to the power of gold! Mr. Valentine, a millionaire six times over, has just ascended the throne. He is king, can do everything, is above everything—like all the rich. Henceforward, equality before the law, before the Constitution, will be a myth for him; for he will not be subject to laws, the laws will be subject to him. There are no courts or sentences for millionaires."

The future of the country and the solution of its problems cannot continue to depend on the selfish interests of a dozen financiers, nor on the cold calculations of profits that ten or twelve magnates draw up in their air-conditioned offices. The country cannot continue begging on its knees for miracles from a few golden calves, similar to the Biblical one destroyed by the fury of a prophet. Golden calves cannot perform miracles of any kind.

The problems of the Republic can be solved only if we dedicate ourselves to fight for that Republic with the same energy and patriotism our liberators had when they created it. . . .

6. MOTHERS OF THE DISAPPEARED

As part of its program of repression of Marxist and Peronist subversive groups, the military dictatorship of Argentina (which took power in 1976) began a systematic campaign of terror. With Argentine civil society paralyzed by fear, and kept in the dark by the extreme censorship of the media, illegal groups linked to the army proceeded to kidnap thousands of people (the exact figure is still unknown, although human rights organizations mention as many as 30,000). These victims of state terror—students, workers, lawyers, activists, journalists, teenagers, parents, even entire families—vanished into clandestine concentration camps where they were tortured, and often murdered. They simply "disappeared." During this dark time, the only form of visible resistance came from a group of mothers—housewives without any previous political experience who were looking for their missing children. The "Mad women of Plaza de Mayo," as they were labeled by the military leaders, would become a powerful symbol of resistance to dictatorship, a resistance harder to repress because of their status as suffering mothers. In the interview excerpts that follow, they recall the origins of the Mothers of the Plaza de Mayo.

Hieba de Bonafini: When Jorge disappeared my first reaction was to rush out desperately to look for him. I didn't cry. I didn't tear my hair out. Nothing mattered any more except that I should find him, that I should go everywhere, at any time, day or night. I didn't want to read anything about what was happening, just search, search. Then I realized we had to look for all of them and that we had to be together because together we were stronger. We had no previous political experience. We had no contacts. We knew no one. We made mistakes at first, but we learned quickly. Every door slammed in our faces made us stop and think, made us stronger. We learned quickly and we never gave up. Everything they said we shouldn't do, that we weren't able to do, we proved we could do.

Dora de Bazze: Our first problem was how we were going to organize meetings if we didn't know each other. There were so many police and security men everywhere that you never knew who was standing next to you. It was very dangerous. So we carried different things so we could identify each other. For example one would hold a twig in her hand, one might carry a

small purse instead of a handbag, one would pin a leaf to her lapel—anything to let us know this was a Mother. We used to go to the square and sit on the benches with our knitting or stroll about, whispering messages to each other and trying to discuss what else we could do.

Sometimes we met in churches. Most of us were very religious. At that time I was a believer too, so we went to the churches to pray together 'Our Father'... and at the same time we would be passing round tiny pieces of folded paper, like when you're in school, cheating on a test. Then we hid them in the hems of our skirts in case we were searched later. Only the small churches, a long way out, lost in the middle of nowhere, would let us in. The rest closed their doors when they found out we were Mothers.

We tried to produce leaflets as well—we had to do it secretly because it was illegal of course—and little stickers saying "the Mothers will be in such and such a place on such and such a day" and "*¿Dónde están nuestros hijos desaparecidos?*" [Where are our disappeared children?]; or "*Los militares se han llevado a nuestros hijos*" [The military have taken our children]. We went out at night to stick them on the buses and underground trains. And we wrote messages on peso notes so that as many people as possible would see them. This was the only way we could let people know that our children had been taken, and what the military government was doing, because when you told them they always said, "They must have done something." There was nothing in the newspapers. If a journalist reported on us, he disappeared. The television and radio were completely under military control, so people weren't conscious. In the beginning we had no support at all.

María del Rosario: At first we didn't march together in the square. We sat on the benches with our knitting or stood in small groups, trying to disguise the letters we were signing to send to the churches, to government officials, to the military. We had to speak to each other quickly, in low voices so it didn't look as if we were having a meeting. Then, when the police saw what was happening and began pointing their rifles at us and telling us to move on, that we had to disperse, that we couldn't be more than two together, we began to walk in twos around the edge of the square. Two in front, two behind—because we had to keep moving but we also had to be able to speak to each other, to talk about what we were going to do next. Every time it got more difficult to communicate with each other because every week there were more police. Sometimes we met in parks as if we were having an office party and there were a few, very few, priests who let us meet in their churches occasionally, and some of the press agencies helped us. France Press lent us their offices sometimes.

At first we walked around the outside of the square, but because there were so few of us we were hardly noticed—and we had to make sure the public knew we existed. We wanted people to see us, to know we were there, so we began to walk in the centre of the square, around the monument. Even if

people supported us they stayed outside the square. It was very dangerous for them to approach us. We were very alone in the beginning.

Aída de Suárez: The headscarves grew out of an idea of our dear Azucena. It was at the time when thousands of people walk to Luján on the annual pilgrimage to pay homage to the Virgin. We decided to join the march in 1977 because many of us were religious and also because we thought it would be a chance for us to talk to each other and organize things. But as some of the Mothers were elderly and wouldn't be able to walk, and we would all be coming from different places, we thought, how will we be able to identify each other amongst all those people, because many thousands go, and how can we make other people notice us? Azucena's idea was to wear as a headscarf one of our children's nappies—because every mother keeps something like this, something which belonged to your child as a baby. It was very easy to spot the headscarves in the crowds and people came up to us and asked us who we were. We'd managed to attract attention, so we decided to use the scarves at other meetings, and then every time we went to Plaza de Mayo together. We all made proper white scarves and embroidered the names of our children on them. Afterwards we put on them "*Aparición con Vida*" [literally, 'Reappearance with life'], because we were no longer searching for just one child but for all of the disappeared.

We used to go to the military regiments together to look for other women like us. The only way we could communicate was by word of mouth and we had to find a way to find other women—not just in Buenos Aires, but women from all over the country. The press was silent. The only one which ever wrote anything about us was the English one, the [Buenos Aires] *Herald*. I went to ask for information at the *Herald* offices many times. It was very dangerous for journalists to show any interest in us.

X TURNING THE NATION INTO A PRISON

When the dark years of military dictatorship gave way to the return of democracy in the Southern Cone (1983 in Argentina, 1985 in Uruguay, 1989 in Chile), many artists who had been exiled, or had endured persecution and banishment in their own countries, reappeared on the artistic scene. A new generation of writers, musicians, and actors, whose work had developed in the shadow of censorship (and who were thus largely unknown to the public) also became visible during those years. Leo Masliah, from Uruguay, is one of these artists. A sophisticated composer, pianist, and guitarist, he cannot be labeled simply a "resistance" artist. Yet this writer and musician did gain his notoriety in the feverish cultural context of the transition from dictatorship to democracy. Argentines and Uruguayans flooded bars and theaters to listen to Masliah's short stories and songs, all dripping with his caustic, idiosyncratic, "rioplatense" sense